

Amendment No. 1 to HB2612

Howell
Signature of Sponsor

AMEND Senate Bill No. 1783*

House Bill No. 2612

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 55-50-321, is amended by adding the following new subsection:

(j)

(1) At the time of application or renewal of a driver license by an applicant who appears at a driver license station, staff shall inquire of the applicant whether the applicant would like to be issued a REAL ID compliant driver license or a non-REAL ID compliant license. The applicant must be provided a printed document that the applicant shall sign and on which the applicant shall check a box stating whether the applicant is applying for a REAL ID compliant driver license or a non-REAL ID compliant driver license and that the applicant was provided the printed document as required pursuant to subdivision (j)(2).

(2) The applicant must be provided a printed document that includes the following information:

(A) The documents that are required to be provided by the applicant to obtain a REAL ID compliant driver license, and the documents that are required to be provided by the applicant to obtain a non-REAL ID compliant driver license;

(B) The purposes for which a REAL ID compliant driver license may be utilized, and the purposes for which a non-REAL ID compliant driver license may be utilized; and

(C) The electronic technology incorporated into a REAL ID compliant driver license, and the electronic technology incorporated into a non-REAL ID compliant driver license.

(3) If the applicant elects not to apply for a REAL ID compliant driver license, then staff shall facilitate and complete the processing of the application for a non-REAL ID compliant driver license.

(4) This subsection (j) does not apply to an applicant seeking a renewal of a REAL ID compliant driver license.

(5) The department's website must contain a prominently displayed statement that indicates obtaining a REAL ID compliant driver license is optional.

(6) As used in this subsection (j):

(A) "Driver license" includes a photo identification license issued under § 55-50-336 and a learner's permit;

(B) "Non-REAL ID compliant driver license" means a driver license that is not compliant with the standards of the REAL ID Act of 2005 (49 U.S.C. §§ 30301, et seq.) and 6 CFR Part 37; and

(C) "REAL ID compliant driver license" means a driver license that complies with the standards of the REAL ID Act of 2005 (49 U.S.C. §§ 30301, et seq.) and 6 CFR Part 37.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.